

Your Honour, that's misogyny talking

We **often witness flashes** of **patriarchy** and misogyny, only to dismiss them as **outliers**, or view them as symptoms of a society in **transition**. But when those moments **emanate from** institutions, we **seek remedy** - such as the Supreme Court - then it becomes necessary to question them. On Tuesday, while hearing an **alimony** case, CJI B R Gavai expressed his **incredulity** that a 'well-educated' woman was demanding a divorce settlement from her husband. His **outburst reflects** a mindset that cannot **fathom** the possibility that a woman could have contributed to her husband's wealth and is, thus, a rightful **claimant** to a share upon the **dissolution** of their **union**.

This is not the first time that top court judges have made observations that reflect a **skewed** view. A few months ago, Justices B V Nagarathna and Satish Chandra Sharma granted **interim bail** to a 23-year-old man **accused of rape**. **By their account**, a 40-year-old woman 'is no baby', and her **complaint** - considered **credible** by the police - **was deficient** because 'a single hand can't clap'. Unfortunately, **examples** of such **egregious gender insensitivity veering** towards misogyny **crop up** far too often in the higher courts.



All **stereotypes** - more so those **rooted in** gender - **hinder** the transformative project of the Constitution. The Supreme Court is **guardian** of the Constitution, which **recognises** equality as a right. Not only does **the apex court guard** the **integrity** of the Constitution, it also provides a moral compass for society. In 2023, it recognised the need for **gender sensitisation**, producing a booklet for the legal community with the aim of 'actively challenging and **dispelling** harmful stereotypes on the basis of gender'. Perhaps it's time for judges to read this publication - so that the courts can **live up to their promise**.

[Practice Exercise]

- Red/blue coloring of words in the sentence indicates subject verb relationship; where 'red' denotes 'subject' and 'blue' denotes 'verb'.
- **Flash** (noun) – a sudden or brief manifestation or occurrence of something. झलक

Vocabulary

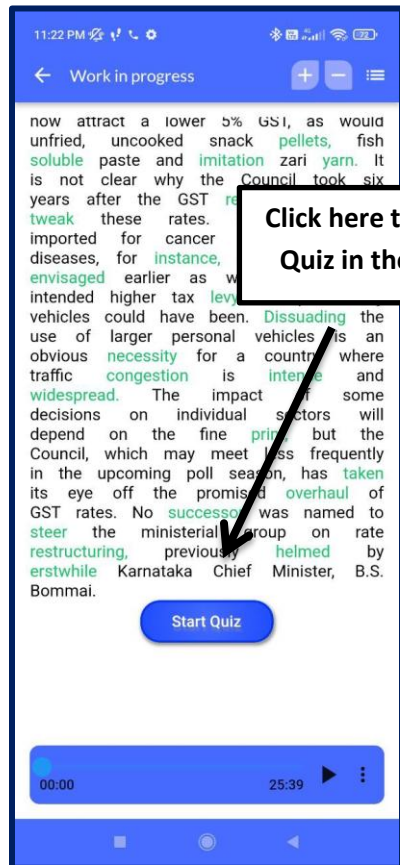
1. **Misogyny** (noun) – dislike of, contempt for, or ingrained prejudice against women – महिलाओं के प्रति घृणा
2. **Often** (adverb) – frequently, regularly, repeatedly, habitually, commonly – अक्सर
3. **Witness** (verb) – observe, see, perceive, detect, experience – देखना
4. **Patriarchy** (noun) – male dominance, male supremacy, father rule, androcracy, paternalism – पितृसत्ता
5. **Outlier** (noun) – exception, anomaly, deviation, irregularity, aberration – अपवाद
6. **Transition** (noun) – change, shift, evolution, transformation, passage – परिवर्तन
7. **Emanate** (from) (verb) – originate, emerge, arise, radiate, issue – से निकलना
8. **Seek** (verb) – pursue, request, ask for, attempt, solicit – प्रयास करना / मांगना
9. **Remedy** (noun) – solution, cure, redress, relief, correction – उपाय
10. **Alimony** (noun) – financial support that a person is ordered by a court to give to their spouse during separation or following divorce; maintenance. गुजारा भत्ता
11. **Incredulity** (noun) – disbelief, skepticism, doubt, mistrust, amazement – अविश्वास
12. **Outburst** (noun) – eruption, explosion, burst, flare-up, expression – विस्फोट
13. **Reflect** (verb) – show, reveal, indicate, mirror, represent – दर्शाना
14. **Fathom** (verb) – understand, comprehend, grasp, figure out, perceive – समझ पाना
15. **Claimant** (noun) – applicant, petitioner, contender, seeker, litigant – दावा करने वाला
16. **Dissolution** (noun) – breakup, termination, disintegration, annulment, collapse – विघटन
17. **Union** (noun) – alliance, partnership, association, marriage, coalition – संघ / विवाह
18. **Skewed** (adjective) – biased, distorted, slanted, uneven, misrepresented – विकृत
19. **Interim bail** (noun) – temporary release, provisional bail, short-term bail, temporary freedom, pre-trial release – अंतरिम जमानत
20. **Accuse** (of) (verb) – charge, blame, allege, indict, implicate – आरोप लगाना

21. **By their account** (phrase) – as per their version, according to them, in their words, from their perspective, reportedly – उनके अनुसार
22. **Credible** (adjective) – believable, reliable, trustworthy, plausible, convincing – विश्वसनीय
23. **Deficient** (adjective) – lacking, insufficient, inadequate, short, faulty – कमी वाला
24. **A single hand can't clap** (phrase) – both parties involved in a situation or argument are equally responsible for it. एक हाथ से ताली नहीं बजती
25. **Egregious** (adjective) – shocking, outrageous, flagrant, glaring, appalling – घोर / भयंकर
26. **Gender insensitivity** (noun) – the process by which people are made aware of how gender plays a role in life through their treatment of others. – लिंग असंवेदनशीलता
27. **Veer** (verb) – turn, deviate, shift, diverge, swerve – मोड़ लेना
28. **Crop up** (phrasal verb) – arise, appear, surface, emerge, come up – अचानक सामने आना
29. **Stereotype** (noun) – cliché, generalization, oversimplification, prejudice, conventional image – रूढ़िबद्ध धारणा
30. **Root** (in) (verb) – originate, base, ground, embed, stem – में जड़ें होना
31. **Hinder** (verb) – obstruct, block, impede, hamper, delay – बाधा डालना
32. **Guardian** (noun) – protector, defender, custodian, overseer, watchman – संरक्षक
33. **Recognise** (verb) – acknowledge, identify, accept, appreciate, admit – मान्यता देना
34. **The apex court** (noun) – Supreme Court, highest court, top judiciary, final authority, constitutional court – सर्वोच्च न्यायालय
35. **Integrity** (noun) – honesty, uprightness, soundness, unity, wholeness – अखंडता / ईमानदारी
36. **Gender sensitisation** (noun) – the process of raising awareness and promoting understanding of gender equality and the elimination of gender-based discrimination
37. **Dispel** (verb) – eliminate, drive away, dismiss, banish, remove – दूर करना
38. **Live up to one's promise** (phrase) – fulfill expectations, meet commitments, keep word, deliver results, stay true – वादा निभाना

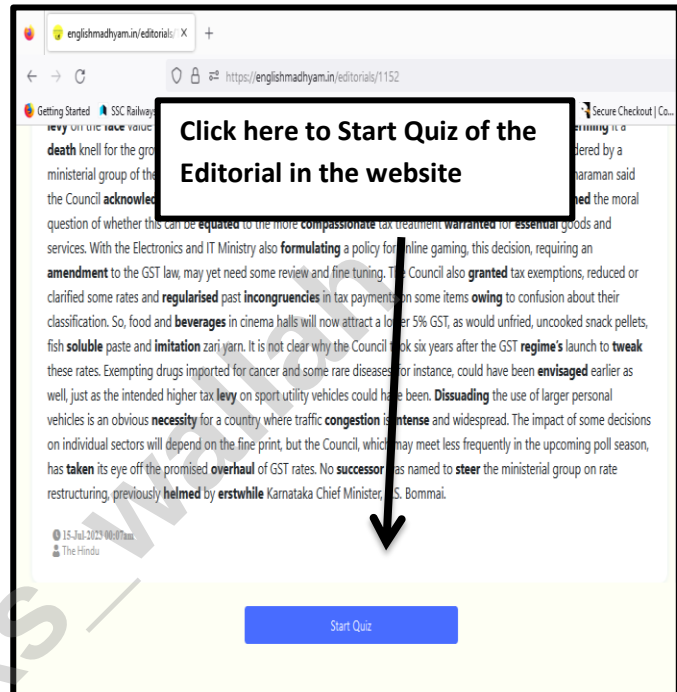
Summary of the Editorial

1. Instances of patriarchy and misogyny are often dismissed as exceptions or societal growing pains.
2. But when such biases emerge from powerful institutions, especially the judiciary, they demand serious scrutiny.
3. The editorial criticizes CJI B R Gavai's remark during a divorce case, questioning a well-educated woman's demand for alimony.
4. His reaction reflects disbelief that a woman could have contributed significantly to her husband's wealth.
5. This exposes a deep-seated gender bias, suggesting women are not equal partners in a marriage.
6. It's not an isolated incident — Supreme Court judges have made other questionable gender-based remarks.
7. For example, Justices B V Nagarathna and Satish Chandra Sharma recently granted bail in a rape case, casting doubt on the 40-year-old complainant.
8. Their statement that "a single hand can't clap" implied shared blame, undermining the survivor's credibility.
9. Such remarks normalize misogyny and weaken the cause of gender justice in India's legal system.
10. Stereotypes based on gender go against the spirit of the Constitution, which guarantees equality.
11. The Supreme Court's duty is not just legal but moral—it must act as a moral compass for society.
12. In 2023, the Court acknowledged this responsibility by publishing a gender sensitisation booklet for the legal community.
13. The booklet aims to challenge and reject harmful gender stereotypes within the legal system.
14. Despite such efforts, the persistence of misogynistic remarks from judges shows that sensitisation hasn't taken root fully.
15. The editorial calls on judges to read and reflect on their own publication, so the courts can fulfill their constitutional promise of equality and justice.

Practice Exercise: Banking Pattern Based



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